

24VECV00550 24VECV00550

County: los-angeles

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Case Number: 24VECV00550 Hearing Date: July 28, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TIMOTHY BEST,

Plaintiff,

vs.

SOUTHERN CALIFORNIA ORTHOPEDIC INSTITUTE, LP; CENTER FOR

ORTHOPEDIC SURGERY, LLC; SCOI ANESTHESIA MEDICAL CORPORATION; THE REGENTS OF THE UNIVERSITY OF CALIFORNIA; DAVID AUERBACH, M.D.; CASSANDRE RIBEIRO, CRNA; DOES 1-100, inclusive,

Defendants.

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CASE NO.: 24VECV00550

ORDER GRANTING DEFENDANTS SCOI ANESTHESIA MEDICAL CORPORATION'S MOTION FOR GOOD FAITH SETTLEMENT

I. BACKGROUND

This case arises out of a shoulder injury Plaintiff Timothy Best ("Plaintiff") allegedly suffered after a surgical procedure on his fingers. Plaintiff alleges the surgery

took place at Defendant Center for Orthopedic Surgery ("Center"), was performed by

Defendant David Auerbach ("Auerbach") of Defendant Southern California Orthopedic Institute, LP ("SCOT") (in conjunction with UCLA Health, sued as The Regents of the University of California ("Regents")). Plaintiff further alleges Defendant Cassandre Casseus, CRNA ("Casseus", erroneously served as Ribeiro), of Defendant SCOI Anesthesia Medical Corporation ("SCOI Anesthesia"), assisted Auerbach during the surgery by administering anesthesia, including an infraclavicular shoulder block ("shoulder block") that Plaintiff did not consent to and that caused Plaintiff's shoulder injuries at the heart of this action.

SCOI settled the case with the Plaintiff and filed a Notice of Settlement.

II. PROCEDURAL HISTORY

On February 7, 2024, Plaintiff filed his Complaint, alleging (1) Medical

Malpractice (against Auerbach); (2) Medical Malpractice (against Center); (3) Medical Malpractice (against Casseus); (4) Medical Malpractice (against SCOI Anesthesia); (5) Medical Malpractice (against SCOD); (6) Medical Malpractice (against Regents); (7) Medical Battery (against Casseus); and (8) Medical Battery (against Auerbach).

On May 22, 2024, SCOI Anesthesia filed its Answer.

On July 8, 2024, Casseus filed her Answer.

On July 8, 2024, Regents filed its Answer.

On September 4, 2024, the Court sustained Demurring Defendants Demurrer

with leave to amend.

On September 18, 2024, Plaintiff filed his First Amended Complaint ("FAC"),

alleging (1) Medical Malpractice (against Auerbach); (2) Medical Malpractice (against Center); (3) Medical Malpractice (against Casseus); (4) Medical Malpractice (against SCOD); (5) Medical Malpractice (against Institute); (6) Medical Malpractice (against Regents); (7) Medical Battery (against Casseus); and (8) Medical Battery (against Auerbach).

On September 30, 2024, SCOI Anesthesia filed its Answer.

On October 8, 2024, Casseus filed her Answer.

On October 18, 2024, Regents filed an Answer.

On December 11, 2024, the Court sustained SCOTs, Center's, and Dr.

Auerbach's demurrer as to Plaintiff's eighth cause of action for medical battery with leave to amend.

On January 3, 2025, Plaintiff dismissed his eighth cause of action.

On January 15, 2025, Plaintiff dismissed Regents.

On September 9, 2025, SCOI filed an Answer.

On May 12, 2026, the Court granted SCOI's unopposed motion for summary judgment.

On May 19, 2026, the Court granted the Center's unopposed motion for summary judgment.

On June 2, 2026, the Court granted Auerbach's Motion for Summary Judgment.

On June 30, 2026, SCOI filed a Notice of Settlement of Entire Case.

III. LEGAL STANDARD

In a case involving two or more alleged joint tortfeasors, "a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement...Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement." (Code Civ. Proc., § 877.6(2).)[1]

In evaluating whether a settlement has been made in good faith, courts consider the following factors, as set forth by the California Supreme Court in the landmark case *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488:

- 1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability,
- 2) the amount paid in settlement,
- 3) the allocation of settlement proceeds among plaintiffs,
- 4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.

5) the settling party's financial conditions and insurance policy limits.

6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.¿

(See *id.* at 499.) "Practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement." (*Id.*)¿

The "good faith" concept in Code of Civil Procedure section 877.6 is a flexible principle imposing on reviewing courts the obligation to guard against the numerous ways in which the interests of nonsettling defendants may be unfairly prejudiced. (*Rankin v. Curtis* (1986) 183 Cal. App. 3d 939, 945.) Accordingly, under Tech-Bilt, the party asserting the lack of "good faith" may meet this burden by demonstrating that the settlement is so far "out of the ballpark" as to be inconsistent with the equitable objectives of the statute. (*Tech-Bilt*, *supra*, 38 Cal.3d at 499-500.) Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section 877.6. (*Id.*)¿¿

The Supreme Court explained that § 877.6 is designed to further two equitable policies:¿¿1) encouragement of settlements; and¿2) equitable allocation of costs among joint tortfeasors.¿(See *id.*)¿¿¿

Those policies would not be served by an approach which emphasizes one to the virtual exclusion of the other. (See *id.*) Accordingly, a settlement will not be found in good faith unless the amount is reasonable in light of the settling tortfeasor's proportionate share of liability. (See *Std. Pac. of San Diego v. A. A. Baxter Corp.* (1986) 176 Cal. App. 3d 577, 589.) Or, as the California Supreme Court has stated, a "defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." (*Tech-Bilt*, *supra*, 38 Cal.3d at 499.)¿

"[O]nly when the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the Tech-Bilt factors. That is to say, when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient." (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.)

The ultimate burden of persuasion is on the party opposing the good faith determination.¿ The "party asserting a lack of good faith shall have the burden of proof on that issue."¿(*Id.* § 877.6(d); see also 3 Weil & Brown, *supra*, at ¶ 12:875.)¿¿

"Section 877.6 and Tech-Bilt require an evidentiary showing, through expert declarations or other means, that the proposed settlement is within the reasonable range permitted by the criterion of good faith." (*Mattco Forge v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1351.) A declaration from a settling defendant's attorney that states, in conclusory fashion, that the client has little or no share of the liability may not be sufficient. (See *Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834-35; see also 3 Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2023) ¶¶ 12:774, 12:872-873.)¿¿

IV. ANALYSIS

Settling Defendant moves for an order declaring the settlement between Settling Defendant and Plaintiff was made in good faith. This motion is unopposed.

Settling Defendants outlines the details of the Settlement Agreement reached during mediation to their application. (See Declaration of Mark P. LaScola filed June 30, 2026 ("LaScola Decl."), ¶ 5, 6.) Settling Defendants address the following Tech-Bilt factors:

As to Tech-Bilt factor 1 Settling Defendant argues that “there is a rough approximation of Plaintiff’s total recovery and settlor’s proportionate liability because Plaintiff and [Settling Defendants] reached the settlement agreement to avoid protracted litigation and associated expenses...” (See Mot. at 4:27-5:5.)

As to Tech-Bilt factors 2 and 4, the Settlement Agreement provides that Settling Defendants shall pay Plaintiff \$60,000.00. (See LaScola Decl.), ¶ 5) Settling Defendants argue the settlement amount is fair and reasonable as it represents a substantial portion of the estimated damages but considers potential litigation costs, the complexity of legal issues involved, and uncertainties of the case. (See LaScola Decl.), ¶ 6.)

As to Tech-Bilt factor 5, Settling Defendant argued they provided documents evidencing their financial condition to reach the settlement with Plaintiff, which supports the finding that the settlement amount is reasonable. (See Mot. at 5:25-6:4.) Furthermore, Defendant’s insurance and policy limits are disclosed in the Declaration of Mark P. LaScola. (See LaScola Decl. ¶ 6.)

As to Tech-Bilt factor 6, Settling Defendant asserts there was no collusion, fraud, or tortious conduct designed to unfairly impact non-settling defendants. (See Mot. at 6:9-15; LaScola Decl., ¶ 11.)

As this Motion is unopposed the Court does not consider and weigh the Tech-Bilt factors as “the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (City of Grand Terrace, 192 Cal.App.3d at 1261.) Here, Settling Defendants’ Motion sufficiently sets forth grounds of good faith. Settling Defendants explain the grounds upon which they reached the settlement amount included considering litigation costs and Settling Defendants’ financial condition, and the parties’ familiarity with relevant facts to ensure an informed settlement agreement. The Motion and supporting declaration set forth a brief background of the case and the terms of the Settlement Agreement. Moreover, whereas here, “[i]f none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement.” (Code Civ. Proc., § 877.6(a)(2).)

Thus, the Court determines this settlement to be in good faith. Under Code of Civil Procedure § 877.7(c), this determination shall “bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.”

V. CONCLUSION

Based on the foregoing, the Court GRANTS Settling Defendants’ Application for Good Faith Settlement.

Under Code of Civil Procedure § 877.7(c), this determination shall “bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.”

IT IS SO ORDERED.

DATED: July 28, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.